

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUBC023088: ALLEN DAVIDOO AND MICHELLE DAVIDOO TRUSTEES OF
THE 46 CINCH TRUST vs GOLD COAST POOL CONSTRUCTION CORPORATION,
et al.**

09/15/2026 in Department 42

**Motion for Order Bifurcating Trial or in the Alternative, For Leave to File a Second
Motion for Summary Judgment**

Motion: Defendant Hillas' Motion to Bifurcate Trial or alternatively, for Leave to File a Second Amended Complaint

Tentative Ruling: The Court grants the motion to bifurcate and denies alternative relief. If the affirmative defense raised by defendant is proven, the defense has the potential to be case dispositive as to Defendant Hillas. The resources necessary to have a trial on this limited issue are minimal and are not likely to be duplicative of evidence relevant to the rest of the case. The Court finds that bifurcation is warranted for purposes of judicial economy and fairness.

Separately, the Court sets an OSC hearing re: why Andrew P. Hillas individually and as trustee of the Hillas Family Trust dated August 24, 1994 should not be dismissed for Plaintiff's failure to file proof of service of summons in violation of Rule 3.110 and pursuant to CCP section 583.420. The hearing is set for October 21, 2026 at 8:30AM.